Reasoning by analogy, the Court in this case concludes that Helicol's contacts with the State of Texas are no more significant than the purchases made by the defendant in *Rosenberg*. The Court makes no attempt, however, to ascertain whether the narrow view of *in personam* jurisdiction adopted by the Court in *Rosenberg* comports with "the fundamental transformation of our national economy" that has occurred since 1923. *McGee* v. *International Life Ins. Co.*, 355 U. S. 220, 222–223 (1957). See also *World-Wide Volkswagen Corp.* v. *Woodson*, 444 U. S. 286, 292–293 (1980); *id.*, at 308–309 (BRENNAN, J., dissenting); *Hanson* v. *Denckla*, 357 U. S. 235, 250–251 (1958); *id.*, at 260 (Black, J., dissenting). This failure, in my view, is fatal to the Court's analysis.

The vast expansion of our national economy during the past several decades has provided the primary rationale for expanding the permissible reach of a State's jurisdiction under the Due Process Clause. By broadening the type and amount of business opportunities available to participants in interstate and foreign commerce, our economy has increased the frequency with which foreign corporations actively pursue commercial transactions throughout the various States. In turn, it has become both necessary and, in my view, desirable to allow the States more leeway in bringing the activities of these nonresident corporations within the scope of their respective jurisdictions.

This is neither a unique nor a novel idea. As the Court first noted in 1957:

> "[M]any commercial transactions touch two or more States and may involve parties separated by the full continent. With this increasing nationalization of commerce has come a great increase in the amount of business conducted by mail across state lines. At the

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Court's resuscitation of *Rosenberg*, therefore, should have no bearing upon any forum's assertion of jurisidiction over claims that arise out of or relate to a defendant's contacts with the State.